

EU Cosmetics Regulation — Regulation (EC) No 1223/2009 (5)

Article 28

Title: Administrative Procedures for Cosmetic Enforcement Decisions

Jurisdiction: International

Category: International

Source Citation: Regulation (EC) No 1223/2009, Article 28, 2009

Plain English Summary:

Regulatory decisions concerning non-compliant cosmetics must state their grounds and inform the responsible person about available legal remedies. Except where immediate action is necessary because of a serious health risk, the responsible person should have an opportunity to present their views before a decision is taken.

The Exact Legal Text:

1. Any decision taken pursuant to Articles 25 and 27 shall state the exact grounds on which it is based. It shall be notified by the competent authority without delay to the responsible person, who shall at the same time be informed of the remedies available to him under the law of the Member State concerned and of the time limits to which remedies are subject.
2. Except in the case where immediate action is necessary for reasons of serious risk to human health, the responsible person shall have the opportunity to put forward his viewpoint before any decision is taken.
3. Where applicable, the provisions mentioned in paragraphs 1 and 2 shall apply with regard to the distributor for any decisions taken pursuant to Articles 26 and 27.

Keywords/Triggers:

cosmetic enforcement decisions, administrative procedure, responsible person rights, regulatory remedies, cosmetic non-compliance, competent authority, cosmetic enforcement

Article 29

Title: Cooperation Between EU Cosmetic Competent Authorities

Jurisdiction: International

Category: International

Source Citation: Regulation (EC) No 1223/2009, Article 29, 2009

Plain English Summary:

EU Member State authorities must cooperate with one another and with the European Commission to ensure consistent enforcement of the Cosmetics Regulation. This means an Ayurvedic cosmetics business may be subject to coordinated regulatory oversight across EU Member States.

The Exact Legal Text:

1. The competent authorities of the Member States shall cooperate with each other and with the Commission to ensure the proper application and due enforcement of this

Regulation and shall transmit to each other all information necessary with a view to applying this Regulation uniformly.

2. The Commission shall provide for the organisation of an exchange of experience between the competent authorities in order to coordinate the uniform application of this Regulation.
3. Cooperation may be part of initiatives developed at international level.

Keywords/Triggers:

EU cosmetic authorities, regulatory cooperation, Member State authorities, cosmetic enforcement, European Commission, regulatory coordination, cosmetics regulation

Article 30

Title: Verification of Cosmetic Product Information Files

Jurisdiction: International

Category: International

Source Citation: Regulation (EC) No 1223/2009, Article 30, 2009

Plain English Summary:

A competent authority can ask another Member State's authority to verify whether a cosmetic product's Product Information File (PIF) meets the required standards and supports the product's safety. For an Ayurvedic cosmetics company, the PIF therefore needs to be complete, accurate, and capable of demonstrating product safety.

The Exact Legal Text:

The competent authority of any Member State where the cosmetic product is made available may request the competent authority of the Member State where the product information file is made readily accessible to verify whether the product information file satisfies the requirements referred to in Article 11(2) and whether the information set out therein provides evidence of the safety of the cosmetic product.

The requesting competent authority shall provide a motivation for the request.

Upon that request, the competent authority requested shall, without undue delay and taking into account the degree of urgency, carry out the verification and shall inform the requesting competent authority of its findings.

Keywords/Triggers:

Product Information File, PIF verification, cosmetic safety evidence, cosmetic authorities, EU cosmetics compliance, PIF requirements, cosmetic product safety

Article 31

Title: Amendment of Cosmetic Ingredient and Safety Annexes

Jurisdiction: International

Category: International

Source Citation: Regulation (EC) No 1223/2009, Article 31, 2009

Plain English Summary:

The European Commission can amend the Cosmetics Regulation's Annexes to address

potential risks to human health and to reflect scientific and technical developments. For an Ayurvedic cosmetics business, this means permitted, restricted, or prohibited ingredients can change over time and regulatory monitoring is important.

The Exact Legal Text:

1. Where there is a potential risk to human health, arising from the use of substances in cosmetic products, which needs to be addressed on a Community-wide basis, the Commission may, after consulting the SCCS, amend Annexes II to VI accordingly.

Those measures, designed to amend non-essential elements of this Regulation, shall be adopted in accordance with the regulatory procedure with scrutiny referred to in Article 32(3).

On imperative grounds of urgency, the Commission may use the urgency procedure referred to in Article 32(4).

2. The Commission may, after consulting the SCCS, amend Annexes III to VI and VIII for the purposes of adapting them to technical and scientific progress.

Those measures, designed to amend non-essential elements of this Regulation, shall be adopted in accordance with the regulatory procedure with scrutiny referred to in Article 32(3).

3. Where it appears necessary, in order to ensure the safety of cosmetic products placed on the market, the Commission may, after consulting the SCCS, amend Annex I.

Those measures, designed to amend non-essential elements of this Regulation, shall be adopted in accordance with the regulatory procedure with scrutiny referred to in Article 32(3).

Keywords/Triggers:

EU cosmetic annexes, prohibited ingredients, restricted ingredients, cosmetic ingredient updates, SCCS, cosmetic safety amendments, scientific developments, EU cosmetics compliance

Article 32

Title: EU Committee Procedure for Cosmetic Regulation

Jurisdiction: International

Category: International

Source Citation: Regulation (EC) No 1223/2009, Article 32, 2009

Plain English Summary:

This Article establishes the committee procedure used by the European Commission when adopting certain measures under the Cosmetics Regulation. It is mainly relevant for understanding how amendments and implementing regulatory measures are formally adopted.

The Exact Legal Text:

1. The Commission shall be assisted by the Standing Committee on Cosmetic Products.
2. Where reference is made to this paragraph, Articles 5 and 7 of Decision 1999/468/EC shall apply, having regard to the provisions of Article 8 thereof.

The period laid down in Article 5(6) of Decision 1999/468/EC shall be set at three months.

3. Where reference is made to this paragraph, Article 5a(1) to (4) and Article 7 of Decision 1999/468/EC shall apply, having regard to the provisions of Article 8 thereof.
4. Where reference is made to this paragraph, Article 5a(1), (2), (4) and (6) and Article 7 of Decision 1999/468/EC shall apply having regard to the provisions of Article 8 thereof.

Keywords/Triggers:

Standing Committee on Cosmetic Products, EU committee procedure, cosmetic regulation amendments, Commission procedure, regulatory procedure, EU cosmetics legislation

Article 33

Title: Common Ingredient Names and INCI Nomenclature

Jurisdiction: International

Category: Standards

Source Citation: Regulation (EC) No 1223/2009, Article 33, 2009

Plain English Summary:

The European Commission maintains a glossary of common cosmetic ingredient names, taking account of internationally recognized nomenclatures such as INCI. For an Ayurvedic cosmetics business, correct ingredient naming is important for compliant cosmetic labeling in the EU.

The Exact Legal Text:

The Commission shall compile and update a glossary of common ingredient names. To this end, the Commission shall take account of internationally recognised nomenclatures including the International Nomenclature of Cosmetic Ingredients (INCI). That glossary shall not constitute a list of the substances authorised for use in cosmetic products.

The common ingredient name shall be applied for the purpose of labelling cosmetic products placed on the market at the latest twelve months after publication of the glossary in the *Official Journal of the European Union*.

Keywords/Triggers:

INCI nomenclature, cosmetic ingredient names, ingredient labeling, EU cosmetic labels, common ingredient name, cosmetic glossary, INCI compliance

Article 34

Title: National Competent Authorities and Poison Control Centres

Jurisdiction: International

Category: International

Source Citation: Regulation (EC) No 1223/2009, Article 34, 2009

Plain English Summary:

Each EU Member State must designate competent authorities responsible for enforcing the Cosmetics Regulation and must communicate information about these authorities and relevant poison centres to the Commission. This establishes the regulatory and emergency-response structure for cosmetic products in the EU.

The Exact Legal Text:

1. Member States shall designate their national competent authorities.
2. Member States shall communicate the details of authorities referred to in paragraph 1 and of the poison centres and similar bodies referred to in Article 13(6) to the Commission. They shall communicate an update of these details as necessary.
3. The Commission shall compile and update a list of the authorities and bodies referred to in paragraph 2 and make it available to the public.

Keywords/Triggers:

EU competent authority, cosmetic regulatory authority, poison control centre, cosmetic emergency response, Member State authority, EU cosmetics enforcement

Article 35

Title: Annual EU Report on Cosmetic Animal Testing

Jurisdiction: International

Category: International

Source Citation: Regulation (EC) No 1223/2009, Article 35, 2009

Plain English Summary:

The European Commission must report annually on progress toward alternative methods to animal testing and the legal acceptance of those methods. The reporting also covers animal-testing data and the needs of small and medium-sized enterprises.

The Exact Legal Text:

Every year the Commission shall present a report to the European Parliament and the Council on:

(1) progress made in the development, validation and legal acceptance of alternative methods. The report shall contain precise data on the number and type of experiments relating to cosmetic products carried out on animals. The Member States shall be obliged to collect that information in addition to collecting statistics as laid down by Directive 86/609/EEC. The Commission shall in particular ensure the development, validation and legal acceptance of alternative test methods which do not use live animals;

(2) progress made by the Commission in its efforts to obtain acceptance by the OECD of alternative methods validated at Community level and recognition by third countries of the results of the safety tests carried out in the Community using alternative methods, in particular within the framework of cooperation agreements between the Community and these countries;

(3) the manner in which the specific needs of small and medium-sized enterprises have been taken into account.

Keywords/Triggers:

animal testing report, alternative testing methods, non-animal testing, cosmetic testing, OECD alternative methods, EU animal testing, cosmetic SMEs

Article 36

Title: Formal Objection to Harmonised Cosmetic Standards

Jurisdiction: International

Category: Standards

Source Citation: Regulation (EC) No 1223/2009, Article 36, 2009

Plain English Summary:

This Article provides a mechanism for a Member State or the European Commission to challenge a harmonised standard if it does not fully satisfy the requirements of the Cosmetics Regulation. This is relevant when determining whether an EU harmonised standard can be relied upon for demonstrating regulatory conformity.

The Exact Legal Text:

1. When a Member State or the Commission considers that a harmonised standard does not entirely satisfy the requirements set out in the relevant provisions of this Regulation, the Commission or the Member State concerned shall bring the matter before the Committee set up by Article 5 of Directive 98/34/EC, giving its arguments. The Committee shall deliver its opinion without delay.
2. In the light of the Committee's opinion, the Commission shall decide to publish, not to publish, to publish with restriction, to maintain, to maintain with restriction or to withdraw the references to the harmonised standard concerned in the *Official Journal of the European Union*.
3. The Commission shall inform the Member States and the European standardisation body concerned. It shall, if necessary, request the revision of the harmonised standards concerned.

Keywords/Triggers:

harmonised standards, cosmetic standards, formal objection, EU standards, regulatory conformity, Official Journal EU, cosmetic compliance standards

Article 37

Title: Penalties for Cosmetic Regulation Violations

Jurisdiction: International

Category: International

Source Citation: Regulation (EC) No 1223/2009, Article 37, 2009

Plain English Summary:

Each EU Member State must establish penalties for violations of the Cosmetics Regulation and take the necessary measures to enforce them. The penalties must be effective, proportionate and dissuasive.

The Exact Legal Text:

Member States shall lay down the provisions on penalties applicable for infringement of the provisions of this Regulation and shall take all measures necessary to ensure that they are implemented. The penalties provided for must be effective, proportionate and dissuasive. The Member States shall notify those provisions to the Commission by 11 July 2013 and shall notify it without delay of any subsequent amendment affecting them.

Keywords/Triggers:

cosmetic regulation penalties, EU cosmetics violations, cosmetic compliance penalties, effective penalties, proportionate penalties, dissuasive penalties, cosmetics enforcement, Member State penalties